

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. _____

☐ COMMITTEE AMENDMENT

(Date)

I move to amend Senate Bill No. 1192 as follows:

1. On Page 1, Line 17 through Page 3, Line 16 by deleting all language and inserting the following language, and amending the title to conform:

“SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 466 of Title 74, unless there is created a duplication in numbering, reads as follows:

A. For purposes of this section:

1. “Alcohol” means any beverage containing more than one-half of one percent (0.5%) alcohol by volume, including but not limited to beer, wine, spirits, or any other alcoholic beverage as defined in Section 1-103 of Title 37A of the Oklahoma Statutes;

2. “Intoxicated” or “intoxication” means a condition in which a person has consumed alcohol such that his or her blood alcohol concentration is eight one-hundredths of one percent (0.08%) or greater, or where observable impairment exists that impairs the person’s ability to perform official duties safely and effectively, as determined by reasonable suspicion and confirmed by Breathalyzer testing;

3. “Official legislative duties” includes, but is not limited to, attendance at sessions of the Senate or House of Representatives, committee meetings, floor proceedings, official business conducted in the State Capitol Building, or any other state-funded travel or event related to legislative functions; and

4. “State Capitol Building” means the premises of the Oklahoma State Capitol, including all legislative chambers, committee rooms, offices, and any adjacent grounds under legislative control.

B. It shall be unlawful for any member of the Legislature to consume, possess, or be under the influence of alcohol while performing official legislative duties or within the State Capitol Building.

C. 1. Upon reasonable suspicion of a violation of subsection B of this section, as determined by the presiding officer of the relevant chamber, security personnel, or a designated legislative officer, the suspected member shall be directed to submit to a Breathalyzer test administered by a commissioned Oklahoma Highway Patrol officer or other qualified law enforcement officer present at the State Capitol Building.

2. Refusal to submit to a Breathalyzer test shall constitute a separate violation under this section and shall result in immediate removal from the chamber or official proceedings, as provided in subsection D of this section.

3. The Breathalyzer test shall utilize equipment approved pursuant to Section 759 of Title 47 of the Oklahoma Statutes. Such test results shall be documented and preserved.

D. Any member of the Legislature that violates subsection B of this section shall be subject to:

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1. Immediate expulsion from the legislative chamber for the remainder of the day, a fine not less than Five Hundred Dollars (\$500.00) nor more than One Thousand Dollars (\$1,000.00), and mandatory referral to the chamber's ethics committee for a first violation;

2. Expulsion from the legislative chamber for not less than three (3) consecutive legislative days, a fine not less than One Thousand Dollars (\$1,000.00) nor more than Two Thousand Five Hundred Dollars (\$2,500.00), mandatory alcohol education or treatment program at the member's expense, and referral to the chamber's ethics committee for a second violation within any twelve-month period; or

3. Permanent expulsion from the legislative chamber for the remainder of the legislative session, a fine not less than Two Thousand Five Hundred Dollars (\$2,500.00) nor more than Five Thousand Dollars (\$5,000.00), and automatic initiation of removal proceedings pursuant to Section 1181 of Title 22 of the Oklahoma Statutes for a third or subsequent violation within any twenty-four-month period.

E. 1. The President Pro Tempore of the Senate and the Speaker of the House of Representatives shall be responsible for ensuring compliance with this section within his or her respective legislative chamber. Failure to enforce this section upon reasonable suspicion of a violation shall subject the presiding officer to the same penalties as the violating member.

2. Each legislative chamber shall adopt internal rules consistent with this section to implement enforcement procedures, including but not limited to training for security personnel and law enforcement officers.

F. 1. Upon confirmation of intoxication during official legislative duties through Breathalyzer testing, witness testimony, or video documentation, and after exhaustion of appeals within the chamber's ethics process, the member shall be referred to a court of competent jurisdiction for removal proceedings pursuant to Section 1181 of Title 22 of the Oklahoma Statutes.

2. Consistent with Article II, Section 11 of the Oklahoma Constitution, documented drunkenness or excessive use of intoxication liquors while in office shall constitute sufficient cause for removal from office through conviction in a court of law or recall election as provided by law.

3. The President Pro Tempore of the Senate or the Speaker of the House of Representatives shall notify the Attorney General of any confirmed violation involving refusal of Breathalyzer testing or multiple violations for potential civil proceedings pursuant to Section 94 of Title 51 of the Oklahoma Statutes.

SECTION 2. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.”.

Submitted by:

Senator Jett

Jett-CN-FA-SB1192

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